BOARD OF DIRECTOR'S RESOLUTION

PARKING AND TOWING POLICY FOR THE
FOOTHILLS AT REVERENCE COMMUNITY ASSOCIATION

AUTHORITY AND PURPOSE FOR THE RESOLUTION:

WHEREAS, The Foothills at Reverence Community Association (the "Association") is a Nevada non-profit corporation, governed by the laws of the State of Nevada, including Nevada Revised Statue ("NRS"), Chapter 116 which governs common-interest communities in Nevada; and

WHEREAS, NRS 116.3102(1) (a) provides that "subject to the provisions of the declaration, the association, may... amend bylaws and may adopt and amend rules and regulations;" and

WHEREAS, NRS 116.3102(1) (s) provides that associations "may direct the removal of vehicles improperly parked on property owned or leased by the Association, as authorized pursuant to NRS 487.038, or improperly parked on any road, street, alley or other thoroughfare within the common-interest community in violation of the governing documents. In addition to complying with the requirements of NRS 487.038 and any requirements in the governing documents, if a vehicle is improperly parked as described in this paragraph, the Association must post written notice in a conspicuous place on the vehicle or provide oral or written notice to the Owner or operator of the vehicle at least 48 hours before the Association may direct the removal of the vehicle, unless the vehicle: (1) is blocking a fire hydrant, fire lane or parking space designated for the handicapped; or (2) poses an imminent threat of causing a substantial adverse effect on the health, safety or welfare of the units' Owners or residents of the common-interest community;" and

WHEREAS, Article III, Section 3.19 of the Bylaws of The Foothills at Reverence Community Association, (the "Bylaws") reads, in pertinent part, as follows: "The powers of the Board of Directors include, but are not limited to, all the rights and duties of the Board of Directors stated elsewhere in these Bylaws, the Articles, the Declaration and Nevada law, ad also include the power to adopt Rules pertaining to the rights and duties of Members of the Association;" and

WHEREAS, Article IV, Section 4.5.4 of the Declaration of Covenants, Conditions and Restrictions and Reservation of Easements for The Foothills at Reverence Community Association (the "Declaration") imposes parking restrictions on anyone parking within the project and reads, in pertinent part, as follows: "The Board shall have the right to establish additional rules and regulations governing the parking and operation of motor vehicles within the Community;" and

WHEREAS, the Board of Directors has adopted Rules and Regulations for the Association Members, resident and tenants, which include provisions restricting the parking of vehicles; and

WHEREAS, the members of the Board of Directors owe a fiduciary duty to reasonably enforce the Association's Governing Documents and to exercise the ordinary and reasonable care of the directors of a corporation, subject to the business judgement rule. *See* NRS 116.3103 (1); and

WHEREAS, this Resolution supersedes all previous Parking and Towing Resolutions; and

WHEREAS, a majority of the Board of Directors has approved this Parking and Towing Policy,

NOW, THEREFORE, IT IS HERBY RESOLVED that the Board of Directors of the Association hereby adopts the following Parking and Towing Policy:

1. Residents and guests of Residents of the community must park in the garage or on the driveway of the unit. When sufficient garage and driveway parking spaces do not exist to accommodate the unit owner's registered vehicles, resident's vehicles may be parked on the community's private streets after the resident obtain the Association's approval.

   Residents MUST register their vehicles with the Association. To register your vehicle, you must complete a "Resident Information Form". Upon completion, resident parking decals will be sent to the vehicle's owner. All residents must always display their parking decals in the front windshield of the vehicle. "Resident Information Forms" may be obtained by contacting the Mangement Company.

2. Visitors of Residents may park on the street during brief and limited visits NOT to exceed 24 hours. Residents may request a parking variance for extended guests and visitors. Extended guest parking variances must be approved by the Board of Directors by contacting Management. Owners MUST provide the date range for your visitor along with the make, model, color, and license plate

number of the vehicle. Upon the Board of Director's approval, a parking pass will be provided (via email) to owner. Guest parking passes MUST be printed and visibly placed on the vehicle's dashboard.

3. Per Summerlin West Community Association's "Garage Conversion to Living Space Resolution": Conversion to living space of garage designed for the parking of two or fewer vehicles is prohibited. Garage may only be used for storage or other usage so as long as it is not a conflict with the specified number of vehicles in the garage (e.g. 2 vehicles for a 2-car garage) and driveway of your home.

4. The community speed limit is 15 miles per hour. All vehicles must yield to pedestrian traffic, obey all stops signs, and not operate any vehicles in a reckless or dangerous manner. Parking in front of the mailboxes is prohibited and will be subject to tow.

5. Only one vehicle may pass through the open gates at a time, no piggybacking on another vehicle. The first vehicle at the gate has the right of way once the gate has opened, no passing of the first vehicle at the gate is allowed. Vehicles may not attempt to drive through malfunctioning gates. The Association will not be held liable for any damages caused to vehicles by the entry or exit gates. The HOA reserves the right to pursue damages and/or reimbursement for costs of damages made to HOA property by vehicles operating in a reckless or dangerous manner.

6. Recreation vehicles (RV's, boats, campers, etc.) may only be parked on the driveways of a Unit or on the street up to forty-eight (48) hours within any seven (7) day period for the purpose of loading, unloading, and cleaning. No unlicensed vehicles, including unlicensed dirt bikes, motor scooters, all-terrain vehicles, off-road vehicles, golf carts, or other similar vehicles shall be parked, maintained or operated on any portion of the Community, except such vehicles may be parked in the garage of the Unit.

7. Commercial or heavy-duty construction vehicles may only be parked in the garages; they may not be parked in a manner to be seen in common area view. Pursuant to NRS 116.350 the Board of Directors shall not, and the governing documents must not prohibit the parking of certain vehicles (i.e., utility service with a gross weight of 20,000 pounds or less, law enforcement vehicles, and emergency service vehicles). These vehicles may park in an area designated for parking for visitors, in a designated parking area or common parking area, or on the driveway of his or her unit, if the person is: (I) A unit's owner or a tenant of a unit's owner; and (II) Bringing the vehicle to his or her unit pursuant to his or her employment with the entity which owns the vehicle for the purpose of responding to requests for public utility services, law enforcement services or emergency services. The Association may require that a person parking a utility service vehicle, law enforcement vehicle or emergency services vehicle provide written confirmation from his or her employer that the person is qualified to park his or her vehicle in the manner set forth.

8. If an Owner, occupant, tenant, guest, invitee, family member, etc. of the foregoing park a vehicle in violation of the Declaration of Covenants, Conditions and Restrictions, Rules and Regulations, or Polices and Resolutions adopted by the Board of Directors, as may be amended form time to time, then the Board of Directors or any agent (towing company) acting on behalf of the Board of Directors, may place written notice of the parking violation on the vehicle that is improperly parked (the "violating vehicle"). The written notice will demand that the violation vehicle be removed within 48 hours of placement of the notice. If the violating vehicle is not removed within 48 hours a violation sticker will be placed on the vehicle. If the violation vehicle is not removed within 48 hours after the sticker is posted, then the vehicle may be towed at vehicle Owner's expense.

9. If the violating vehicle is moved within 48 hours after posting of the notice, but within thirty (30) days of issuance of the first written notice, the violating vehicle is again parked in such a manner as to violate the Association's Declaration or Rules, then the violating vehicle will be deemed to be in violation for a period exceeding 48 hours and the violating vehicle may be towed without further notice to the Owner, occupant, tenant, guest, invitee or family member of the foregoing. If the violation is cured for more than thirty (30) days, then the violation vehicle shall receive a written notice consistent with Paragraph 3 above.

10. Notwithstanding anything else in this Resolution to the contrary, if a vehicle is improperly parked in such a manner as to: (1) be blocking a fire hydrant, fire lane, parking space designated for the handicapped, or parked with 15' of any corner and/or intersection or (2) pose an imminent threat of causing a substantial adverse effect on the health, safety, welfare of the units' Owners or residents of the common-interest community, then the Board of Directors may direct the immediate removal of the Violating Vehicles from the Community.

11. Any fees and expenses associated with the removal of a violating vehicle from the Community shall be at, the sole expense of the Owner of the violating vehicle.

12. The Owner of the unit is responsible for providing notice of the Rules, as well as any other provisions of the Association's governing documents, to the Owner's tenants, guests, invitees, contractors, etc. For the purposes of this Resolution, notice to an Owner shall be deemed to be notice to that Owner's tenants, guests, invitees, contractors, etc.

13. The Owner of the unit is responsible for the actions and conduct of any occupant, tenant, guest, invitee, or family member of the Owner. The Owner of the unit is fully responsible for all fines incurred by their residents, guests, invitees, family members, etc.

14. The sanctions and penalties set forth herein are cumulative in nature and do not prevent the Association from taking all necessary legal action to enforce any violation of the Associations' governing documents by injunctive relieve.

If the law changes and becomes effective before this resolution can be changed, the law takes precedence over this resolution to the extent of any conflicts.

This resolution is adopted during the Board of Directors Meeting held the 14th day of December 2021 and will go into effect thirty (30) days from the date of mailing of this resolution to the Owners of the Association.

BY: Anne Lucius
President

ATTESTED: George Schwebel
Secretary